

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI
ON APPEAL FROM THE JUSTICE COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

PLAINTIFF/APPELLANT

V.

No. L21-494

STATE OF MISSISSIPPI

DEFENDANT/APPELLEE

CORRECTED NOTICE OF APPEAL AND DEMAND FOR JURY TRIAL

COMES NOW plaintiff/appellant Matthew Reardon, by and through court-appointed counsel, and files his corrected Notice of Appeal and Demand for Jury Trial pursuant to Rule 29.1(c) of the Mississippi Rules of Criminal Procedure as follows:

1. On December 3, 2021, Matthew Reardon, unrepresented by counsel at the time, filed his “*Motion to Alter or Amend Judgment Under M.R.C.P. 59(e), or in the Alternative, to Vacate Judgment Entered Pursuant to M.R.C.P. 60(b)(1, 2, 4, 6).*” Mr. Reardon intended for this pleading to also serve as his Notice of Appeal of criminal convictions in the Justice Court of Lafayette County. According to Mr. Reardon, he later attempted to file a pleading styled “Notice of Appeal” but was not allowed to file that pleading.

2. On Tuesday, April 12, 2022, this Court held a hearing on the pending Motions and issues of this matter. The Court stated that it appeared that the *Motion to Alter or Amend* did not comply with the requirements of the Mississippi Rules of Criminal Procedure for a proper notice of appeal from Justice Court, but the Court did not make a ruling nor identify the nature of any deficiency. A M.R.Cr.P. 29.1(c) written notice of deficiency has not been served on Mr. Reardon. This corrected Notice of Appeal is filed pursuant to M.R.Cr.P. 29.1(c) to presumptively correct any

deficiencies in the Notice of Appeal and to alleviate the necessity of the Court directing the Clerk to issue a written notice of deficiency.

3. The Justice Court of Lafayette County and this Court have both found that Mr. Reardon is entitled to proceed *in forma pauperis*. Therefore, the requirements of a cost bond and appearance bond of M.R.Cr.P. 29.1(a) are inapplicable to this Notice of Appeal.

4. M.R.Cr.P. 29.1(b) sets forth the required content of a Notice of Appeal and Mr. Reardon provides that content as follows:

1. Party taking the appeal: Matthew Reardon.
2. Current residence (physical and mailing) address of the appealing party: 503 County Road 371, Water Valley, MS 38965.
3. Designate the Judgment or Order from which the appeal is taken: The Justice Court of Lafayette County's judgments finding Mr. Reardon guilty of DUI (Other), Disorderly Conduct, Resisting Arrest and Improper Equipment. Those judgments are reflected in the four "Abstract of Court Record" attached hereto as Exhibit "A" and incorporated herein by reference. To the extent necessary to preserve any appeal rights, Mr. Reardon also appeals from the Justice Court's order(s) denying Mr. Reardon's post-trial motion(s) on his convictions.
4. Notice of Appeal must be addressed to the Circuit Court: This appeal is addressed to the Circuit Court. It will be hand delivered to the Circuit Court of Lafayette County for filing in L21-494 and a copy will be mailed to the Senior Circuit Court Judge.
5. Notice of Appeal must state that the appeal is taken *de novo*: This appeal is taken *de novo*.

5. Mr. Reardon has now filed a Notice of Appeal complying with M.R.Cr.P. 29.1 and has cured any deficiencies in his original filing. Mr. Reardon asks the Court to find, order and adjudge that his *de novo* appeal has been perfected and to set this matter for jury trial at the earliest possible convenience of the Court and the parties.

6. In the event that there are any deficiencies in this Corrected Notice of Appeal and Demand for Jury Trial, pursuant to M.R.Cr.P. 29.1(c), Mr. Reardon is entitled to notice of any remaining deficiencies and entitled to the opportunity to cure those deficiencies.

7. Mr. Reardon demands trial by jury.

WHEREFORE, PREMISES CONSIDERED, Matthew Reardon, plaintiff/appellant herein, respectfully requests the relief identified above and for any alternate or additional relief that may be appropriate.

RESPECTFULLY SUBMITTED, this the 18th day of April, 2022.

MATTHEW REARDON

BY: /s/Mitchell O. Driskell, III
MITCHELL O. DRISKELL, III
Mississippi Bar No.: 100079

MITCHELL O. DRISKELL, III, ESQ.
Daniel Coker Horton & Bell, P.A.
Post Office Box 1396, Oxford, MS 38655
(662)234-8979
(662)234-8940 (fax)
mdriskell@danielcoker.com

CERTIFICATE OF SERVICE

I, Mitchell O. Driskell, III do hereby certify that I have this day served a true and correct copy of the foregoing Motion by U. S. Mail First Class Postage Prepaid and/or by electronic mail to:

Jeff Busby, Clerk
Lafayette County Circuit Court
101 Courthouse Square
Oxford, MS 38655

Honorable Kelly Luther
Senior Circuit Court Judge
102-F N. Main Street
Ripley, MS 38663
Kathysturdivant2015@gmail.com

Jay Chain, Esq.
P. O. Box 913
Oxford, MS 38655
bjchainiii@gmail.com

Honorable Christopher Childers
P. O. Box 972
New Albany, MS 38652
childerslaw@bellsouth.net

/s/Mitchell O. Driskell, III
MITCHELL O. DRISKELL, III

STATE OF MISSISSIPPI
ABSTRACT OF COURT RECORD
LAFAYETTE COUNTY

Agency Code: 9036
Ticket No: 6042

Date: 4/14/2022

DEFENDANT

Name: REARDON, MATTHEW OLIVER Race: WHITE Sex: MALE
Physical Address: 664 RD 1057
Mailing Address: _____
City: TUPELO State: MS Zip Code: _____
Drivers License Number: 801186335 State: MS Date of Birth: 3/24/1987
SSN: _____

VEHICLE INFORMATION

Registration (Tag) No: DAM9526 State: MS Year: _____
Vehicle Model Year: 2013 Make: KIA Type: _____

VIOLATION

Charged With: D.U.I. 1ST OFFENSE % BAC: _____ Speed: _____ Zone: _____
Date of Violation: 2/21/2021 Court Date: 11/04/2021 Hwy or Street: HATHORN RD
Charges Were Filed By: BEAVERS, KANDICE Badge No: L29
Comments: _____
Defendant Entered a Plea of: NOT GUILTY
Judgement of Court: GUILTY
By Judge: CHILDERS, CHRIS

Remarks by Court:

11/24/2021 C MASEP AND VICTIM IMPACT, PAY IN 30 DAYS FROM 11/24/2021

Case Notes:

2/25/2021 AL WILLIAMS BAIL BOND CO. \$1,187.00

Defendant was Fined: 400.00 Plus Assessments of: 404.00
Sentenced To: _____

Bail Forfeited ()
Fine Paid ()

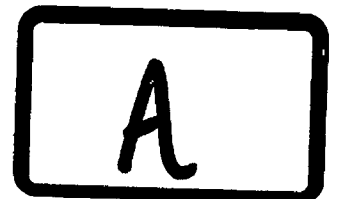
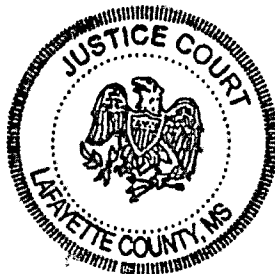
Appealed ()

I Certify That This is a True and Correct Copy of My Court Record as Recorded in
Docket: 219 Page: 317
Case: 9291202

Signed: Laci Hup

Title: De

Date: 4/14/2022



STATE OF MISSISSIPPI
ABSTRACT OF COURT RECORD
LAFAYETTE COUNTY

Agency Code: 9036
Ticket No:

Date: 4/14/2022

DEFENDANT

Name: REARDON, MATTHEW Race: _____ Sex: _____
Physical Address: _____
Mailing Address: _____
City: _____ State: _____ Zip Code: _____
Drivers License Number: _____ State: _____ Date of Birth: _____
SSN: _____

VEHICLE INFORMATION

Registration (Tag) No: _____ State: _____ Year: _____
Vehicle Model Year: _____ Make: _____ Type: _____

VIOLATION

Charged With: DISORDERLY CONDUCT % BAC: _____ Speed: _____ Zone: _____
Date of Violation: 12/28/2020 Court Date: 11/04/2021 Hwy or Street: _____
Charges Were Filed By: DIXON, COURTNEY Badge No: L28
Comments: _____
Defendant Entered a Plea of: NOT GUILTY
Judgement of Court: GUILTY
By Judge: CHILDERS, CHRIS

Remarks by Court:

11/24/2021 C PAY FINE IN 30 DAYS FROM 11/24/2021
3/01/2021 A MOTIONS DENIED ON HEARING

Case Notes:

1/14/2021 A ONE BAIL BONDS \$700.00

Defendant was Fined: 75.00 Plus Assessments of: 182.25

Sentenced To: _____
Bail Forfeited () Appealed ()
Fine Paid ()

I Certify That This is a True and Correct Copy of My Court Record as Recorded in
Docket: 70 Page: 331
Case: 9290609

Signed: Laci Faye

Title: Deputy Clerk

Date: 4/14/2022



STATE OF MISSISSIPPI
ABSTRACT OF COURT RECORD
LAFAYETTE COUNTY

Agency Code: 9036
Ticket No:

Date: 4/14/2022

DEFENDANT

Name: REARDON, MATTHEW Race: _____ Sex: _____
Physical Address: _____
Mailing Address: _____
City: _____ State: _____ Zip Code: _____
Drivers License Number: _____ State: _____ Date of Birth: _____
SSN: _____

VEHICLE INFORMATION

Registration (Tag) No: _____ State: _____ Year: _____
Vehicle Model Year: _____ Make: _____ Type: _____

VIOLATION

Charged With: RESISTING ARREST % BAC: _____ Speed: _____ Zone: _____
Date of Violation: 12/28/2020 Court Date: 11/04/2021 Hwy or Street: _____
Charges Were Filed By: DIXON, COURTNEY Badge No: L28
Comments: _____
Defendant Entered a Plea of: NOT GUILTY
Judgement of Court: GUILTY
By Judge: CHILDERS, CHRIS

Remarks by Court:

11/24/2021 C PAY FINES IN 30 DAYS FROM 11/24/2021
3/22/2021 A MOTIONS DENIED ON HEARING

Case Notes:

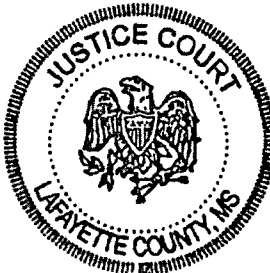
1/14/2021 A ONE BAIL BONDS \$700.00

Defendant was Fined: 150.00 Plus Assessments of: 152.25
Sentenced To:

Bail Forfeited () Appealed ()
Fine Paid ()

I Certify That This is a True and Correct Copy of My Court Record as Recorded in
Docket: 70 Page: 332
Case: 9290610

Signed: Laci Faye Title: Deputy Clerk
Date: 4/14/2022



STATE OF MISSISSIPPI
ABSTRACT OF COURT RECORD
LAFAYETTE COUNTY

Agency Code: 9036
Ticket No: 13815

Date: 4/14/2022

DEFENDANT

Name: REARDON, MATTHEW OLIVER Race: WHITE Sex: MALE
Physical Address: 664 RD 1057
Mailing Address: _____
City: TUPELO State: MS Zip Code: _____
Drivers License Number: 801186335 State: MS Date of Birth: 3/24/1987
SSN: _____

VEHICLE INFORMATION

Registration (Tag) No: DAM9526 State: MS Year: _____
Vehicle Model Year: 2013 Make: KIA Type: _____

VIOLATION

Charged With: IMPROPER EQUIPMENT HP % BAC: _____ Speed: _____ Zone: _____
Date of Violation: 2/21/2021 Court Date: 11/04/2021 Hwy or Street: HATHORN RD
Charges Were Filed By: WILLIFORD, JACOB Badge No: L47
Comments: _____
Defendant Entered a Plea of: NOT GUILTY
Judgement of Court: GUILTY
By Judge: CHILDERS, CHRIS

Remarks by Court:

11/24/2021 C PAY IN 30 DAYS FROM 11/24/2021

Case Notes:

2/25/2021 AL WILLIAMS BAIL BOND CO. \$1,187.00

Defendant was Fined: 30.00 Plus Assessments of: 116.00
Sentenced To: _____
Bail Forfeited () Appealed ()
Fine Paid ()

I Certify That This is a True and Correct Copy of My Court Record as Recorded in
Docket: 219 Page: 314
Case: 9291198

Signed: Laci Hye Title: Deputy Clerk
Date: 4/14/2022

